

26CV-03197

Michelle Agosto vs Diana Morales

Motion for Relief from Default and Default Judgment, if Entered [CCP 473 (d)]

Defendant's motion for relief from entry of default is GRANTED and the default entered on July 21, 2026, against defendant, Diana Morales, is SET ASIDE.

Under Code of Civil Procedure section 473, subdivision (b), a motion for relief from entry of default brought within six months of default is appropriate where the moving party has made an adequate showing of mistake, inadvertence, or excusable neglect. Defendant's motion establishes erroneous reliance on representations that an extension to respond to the lawsuit would be granted. The motion was timely filed, within a week of the entry of default. Plaintiff has failed to establish any prejudice that she would suffer if the default is set aside, apart from prosecuting the matter on the merits.

Defendant is to file their proposed answer within ten (10) days of this court's order.

26CV-04302

Anjelina Trevino vs Anessa Reyes

Order to Show Cause Re: Restraining Order

Appearance required. No proof of service of the notice of hearing and temporary orders on Respondent has been filed with the court.
